

25STCV07062 25STCV07062

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV07062 Hearing Date: August 18, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 18, 2026

Case Name: Casillas v. Babak Mohammadi,
et al.

Case

No.: 25STCV07062

Matter: Motion to Stay of Proceedings

Moving

Party: Defendants Las Lomas

Investments, LLC and Babak Mohammad

Responding Party: Plaintiff Martin Casillas

Tentative

Ruling: Defendants Las Lomas

Investments, LLC and Babak Mohammad's motion to stay proceeding is denied.

Plaintiff Martin

Casillas ("Plaintiff") brings this action against Defendants Babak Mohammad, Las Lomas Investments, LLC, Jose Talavera, an individual doing business as Stucco Guys, Eusebio Valles Sanchez, an individual doing business as Stucco Guys, and

Does 1 through 20. The Complaint alleges four causes of action for: (1) negligence; (2) statutory employer liability (Labor Code sections 3706 and 2750.5); (3) premises liability; and (4) declaratory relief.

Defendants

Las Lomas Investments, LLC and Babak Mohammad (collectively "Defendants") move to stay the proceedings. Plaintiff opposes.

Legal Standard

"Trial

courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) They also have inherent powers to manage and fashion procedures to control litigation and ensure the orderly administration of justice. (Cottle v. Superior Court (1992) 3 Cal.App.4th 1367, 1376-79; see also Code Civ. Proc., § 128, subd. (a)(3) and (a)(5).)

Analysis

Defendants

Las Lomas Investments, LLC and Babak Mohammad move to stay the proceedings until the preceding action in the Workers Compensation Appeals Board ("WCAB") Case No. ADJ12391409 is resolved. Defendants contend that the WCAB has jurisdiction to rule on Plaintiff's case as the first case, as the Court and the WCAB can ultimately reach conflicting rulings.

"Liability

for the compensation provided by [Workers' Compensation], in lieu of any other liability whatsoever to any person except as otherwise specifically provided in Sections 3602, 3706, and 4558, shall, without regard to negligence, exist against an employer for any injury sustained by his or her employees arising out of and in the course of the employment and for the death of any employee if the injury proximately causes death. . ." (Labor Code, § 3600, subd. (a).) But, "[i]f any employer fails to secure the payment of compensation, any injured employee or his dependents may bring an action at law against such employer for damages, as if this division did not apply." (Lab. Code § 3706.)

In

opposition, Plaintiff contends the WCAB's decision has no impact in this case because Plaintiff has a right pursuant to Labor Code section 3706 to proceed with his case because Defendant Babak Mohammad testified under oath during his deposition that neither he nor Defendant Las Lomas Investment, LLC maintained workers' compensation insurance. (Moghaddami Decl., ¶ 14, Ex. G.)

The sole and exclusive remedy of an employee under Workers' Compensation is based on the requirements of Labor Code section 3600. (Lab. Code, § 3602.) Moreover, pursuant to Labor Code section 375, subdivision (a), an employee may file a civil action "in addition" to their workers' compensation claim when the employer was uninsured. (Lab. Code, § 3715, subd. (a).)

The Labor Code is clear: if an employer fails to secure payment of compensation, an injured employee may seek damages if the Workers' Compensation Division does not apply. (Lab. Code. § 3706.)

Defendants did not file a timely reply to address the arguments raised in the opposition. Moreover, Defendants' arguments that there is a risk of contradictory rulings are inapplicable because Plaintiff has a separate claim against Defendants pursuant to Labor Code section 3706.

Thus,
Defendants' motion to stay is denied.

Conclusion

Defendants
Las Lomas Investments, LLC and Babak Mohammad's motion to stay proceedings is denied.